t cannot purchase compliant fuel oil.

42 Refer to the 2012 Guidelines for the development of a Regional Reception Facilities Plan (resolution MEPC.221(63)), as amended by resolution MEPC.363(79)).

43 Refer to the 2011 Guidelines for reception facilities under MARPOL Annex VI (resolution MEPC.199(62))

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2.5 A Party shall notify the Organization when a ship has presented evidence of the non-availability of compliant fuel oil.

Fuel oil quality

3 Fuel oil delivered to and used on board a ship to which this Annex applies shall meet the following requirements:

.1 except as provided in paragraph 3.2 of this regulation:

.1 the fuel oil shall be blends of hydrocarbons derived from petroleum refining. This shall not preclude the incorporation of small amounts of additives intended to improve some aspects of performance;

.2 the fuel oil shall be free from inorganic acid; and

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refining. This shall not preclude the incorporation of small amounts of additives intended to improve some aspects of performance;

.2 the fuel oil shall be free from inorganic acid; and

.3 the fuel oil shall not include any added substance or chemical waste that:

.1 jeopardizes the safety of ships or adversely affects the performance of the machinery, or

.2 is harmful to personnel, or

.3 contributes overall to additional air pollution.

.2 fuel oil derived by methods other than petroleum refining shall not:

.1 exceed the applicable sulphur content set forth in regulation 14 of this Annex;

.2 cause an engine to exceed the applicable NO x emission limit set forth in paragraphs 3, 4, 5.1.1 and 7.4 of regulation 13;

.3 contain inorganic acid; or

.4.1 jeopardize the safety of ships or adversely affect the performance of the machinery, or

.4.2 be harmful to personnel, or

.4.3 contribute overall to additional air pollution.

4. This regulation does not apply to coal in its solid form or nuclear fuels. Paragraphs 5.1,

8.1 and 8.2 of this regulation do not apply to a low-flashpoint fuel or a gas fuel.

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.4.3 contribute overall to additional air pollution.

4. This regulation does not apply to coal in its solid form or nuclear fuels. Paragraphs 5.1,

8.1 and 8.2 of this regulation do not apply to a low-flashpoint fuel or a gas fuel.

5.1 For each ship subject to regulations 5 and 6 of this Annex, details of fuel oil delivered

to and used on board that ship shall be recorded by means of a bunker delivery note that shall

contain at least the information specified in appendix V.

5.2 For each ship subject to regulations 5 and 6 of this Annex, details of low -flashpoint

fuel or gas fuel delivered to and used on board that ship shall be recorded by means of a

bunker delivery note that shall include at least the information specified in i tems 1 to 6 of

appendix V, the density as determined by a test method appropriate to the fuel type together

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with the associated temperature and a declaration signed and certified by the fuel oil supplier's

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with the associated temperature and a declaration signed and certified by the fuel oil supplier's

representative that the fuel oil is in conformity with paragraph 3 of this regulation. In addition

the sulphur content of a low-flashpoint fuel or a gas fuel delivered to a ship specifically for use

on board that ship shall be documented on the bunker delivery note by the supplier in terms of

either the actual value as determined by a test method appropriate to the fuel type or, with the

agreement of the approp riate authority at the port of supply, a statement that the sulphur

content, when tested by such a method, is less than 0.001% m/m.

6 The bunker delivery note shall be kept on board the ship in such a place as to be

readily available for inspection at all reasonable times. It shall be retained for a period of three

years after the fuel oil has been delivered on board.

7.1 The competent authority of a Party may inspect the bunker delivery notes on board

any ship to which this Annex applies while the ship is in its port or offshore terminal, may ma